

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3448

By: Wilk

COMMITTEE SUBSTITUTE

An Act relating to the Children and Juvenile Code;
requiring group homes to maintain general liability
insurance coverage; directing the Department of Human
Services to promulgate rules; providing that certain
form be completed annually; requiring the group home
to maintain form; requiring that the insurance policy
or contract be maintained at all times; providing
that prevailing party shall be entitled to certain
fees and costs; providing for codification; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-8-115 of Title 10A, unless
there is created a duplication in numbering, reads as follows:

A. A group home, as defined in Section 1-1-105 of this title,
shall maintain general liability insurance coverage of at least One
Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
to off-site personal property. An insurance policy or contract
required under this section shall cover damage to off-site personal

1 property that occurs while the child is in the care of the group
2 home.

3 B. The Department of Human Services shall promulgate rules
4 providing for a standard form to be signed and dated by an insurance
5 agent licensed in this state confirming that the group home has an
6 unexpired and uncanceled insurance policy or contract of at least
7 One Hundred Thousand Dollars (\$100,000.00) that meets the
8 requirements of this section. This form shall be completed annually
9 and shall be maintained by the group home.

10 C. The insurance policy or contract shall be maintained at all
11 times in an amount as required by this section.

12 D. The Department shall promulgate rules to implement the
13 provisions of this section.

14 E. The prevailing party in a civil action for damage to off-
15 site personal property that occurs while the child is in the care of
16 the group home shall be entitled to attorney fees and costs.

17 SECTION 2. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 2-11-101 of Title 10A, unless
19 there is created a duplication in numbering, reads as follows:

20 A. A group home, as defined in Section 2-1-103 of this title,
21 shall maintain general liability insurance coverage of at least One
22 Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
23 to off-site personal property. An insurance policy or contract
24 required under this section shall cover damage to off-site personal

1 property that occurs while the child is in the care of the group
2 home.

3 B. The Department of Human Services shall promulgate rules
4 providing for a standard form to be signed and dated by an insurance
5 agent licensed in this state confirming that the group home has an
6 unexpired and uncanceled insurance policy or contract of at least
7 One Hundred Thousand Dollars (\$100,000.00) that meets the
8 requirements of this section. This form shall be completed annually
9 and shall be maintained by the group home.

10 C. The insurance policy or contract shall be maintained at all
11 times in an amount as required by this section.

12 D. The Department shall promulgate rules to implement the
13 provisions of this section.

14 E. The prevailing party in a civil action for damage to off-
15 site personal property that occurs while the child is in the care of
16 the group home shall be entitled to attorney fees and costs.

17 SECTION 3. This act shall become effective November 1, 2026.

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